

Narayan Singh Kardam v. U.P.P.C.L.

Allahabad High Court · Division Bench · 8 March 2016 · Writ-C No. 10680 of 2016 · WRIT - C No. 10680 of 2016 · **Writ dismissed; dues dispute relegated to Clause 6.5.**

HEADNOTE

A consumer disputing arrears after temporary disconnection for alleged outstanding dues of D.V.V.N.L. was refused writ relief and directed to raise the dispute under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Narayan Singh Kardam approached the Allahabad High Court after a communication from Dakshinanchal Vidyut Vitran Nigam Limited informed him that his electricity supply had been temporarily disconnected with effect from 6 November 2015 because alleged dues of Rs 1,35,727 remained unpaid, and that the amount had to be deposited for restoration. He asserted that there were in fact no arrears. The respondents were U.P. Power Corporation Limited and two others. The Division Bench took up the writ at the admission stage.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-alternative-remedy

HOLDING

A dispute that alleged electricity arrears are not due, where supply has been temporarily disconnected for those dues, is to be raised under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and a writ petition on that controversy is not to be entertained at that stage. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing arrears after temporary disconnection for alleged outstanding dues of D.V.V.N.L. was refused writ relief and directed to raise the dispute under Clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER ACTUALLY OWED THE CLAIMED ARREARS OF RS 1,35,727

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